

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN FIJI

Complete Community Opposition How-To

This guide is built around Fiji's distinctive lever — that around nine in ten of the land is iTaukei customary land, owned communally and only leased with consent — and it names the bodies and terms you'll meet (iTaukei land and the vanua, the TLTB, the environmental approval and EIA, the regulator, the courts) in plain words.

INTRODUCTION & FRAMEWORK

On **Malolo Island**, in the Mamanuca group, a Chinese-linked company, **Freesoul Real Estate Development**, began building what would have been Fiji's largest resort — some 350 overwater bures and the nation's first casino — at **Wacia**, near **Solevu Village**. Without the environmental approval the law required for the foreshore and marine works, the company dug a channel roughly a hundred metres long **straight through the reef**, dumped the dredged coral on a neighbour's beach, tore out nearly two hectares of **mangroves**, and piped raw sewage into the sea. The villagers and neighbouring landowners who depended on that reef and those mangroves did not simply grieve. They alerted the authorities, who issued a **stop notice**; they went to court, where judges **ordered the work halted**; they brought in journalists whose reporting drew the eyes of the world. And they won. In **2021 the company was found guilty** — Fiji's **first-ever criminal conviction for environmental harm** — and in **2022 the High Court imposed the maximum fine the law allowed, one million Fijian dollars**, the judge saying the sentence reflected the community's disapproval of a developer's contempt for the environment. Ordinary Fijians, using their law and their courts, stopped the country's biggest planned resort and made an example of the company that tried to bully its way past them.

The villagers and landowners of Malolo drew on tools that give Fijian communities a starting hand few others hold — beginning with the land itself. Around nine in ten of Fiji's land is **iTaukei customary land**, owned communally by clans, which **cannot be leased without consent**, secured through the **iTaukei Land Trust Board (TLTB)** — and with it come customary rights over land and sea. A major project needs **environmental approval (an EIA)** for its works, especially foreshore and marine works. The **courts** enforce the law — here, to Fiji's first-ever criminal conviction for environmental harm and a record one-million-dollar fine; protest, petition, and litigation are lawful. And a free press and the strength of the **vanua** — the unity of land and people — amplify a community's stand. But these tools have real limits, and this guide states them plainly. The mangroves and the reef at Malolo were destroyed **before** the conviction — a fine is not a living forest or a healed reef, so speed matters. And the strongest Fijian lever has a crucial gap: **the minerals under the land belong to the State, not the landowners**, so for a mine, customary ownership is not the veto it is for a resort. So aim for what these tools can deliver, moving fast to prevent destruction, not only to punish it.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of consents and approvals, and a chain breaks at its weakest link. A Fijian project usually needs your **customary land** — so it needs **consent** through the TLTB; it needs **environmental approval** for its works; it can be met with **regulators and the courts** when it breaks the law; and it depends on a public quiet the **vanua's unity and the press** can end. Every one of

those is a link you can grab — and consent over your customary land is the strongest (except for minerals). **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend months on this, work out your real situation:

- **If it's on or beside your iTaukei land, consent is your sharpest lever** — the land can't be leased without it, and the vanua's unity is your strength.
- **If it needs environmental approval, that permit and the law are real levers** — Malolo was convicted for skipping them.
- **If the developer breaks the law, the regulator and the courts genuinely bite** — even to criminal conviction and the maximum fine.
- **If it's a mine, know the gap** — the minerals belong to the State, so customary ownership is not the veto it is for a resort; lean harder on the environmental law, consent to surface works, and the courts.

Read the whole guide once before you move. Two habits run through it: **hold the vanua united and use your consent over the land**, and **move fast through the regulator and the courts** — because at Malolo the reef was destroyed before the win. That's how Malolo stopped Fiji's biggest resort.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Most land is **iTaukei customary land**, which cannot be sold and can be **leased only with consent**, administered through the **iTaukei Land Trust Board (TLTB)** — so the landowning clan's consent is decisive for a lease. A major project needs **environmental approval (an EIA)** for its works, especially foreshore and marine works, from the environmental regulator. The **courts** enforce the environmental law, up to criminal conviction. And custom, the **vanua**, and a free press shape what a community will bear. Know which consent or approval you can reach — and for a resort, consent over the land is the sharpest.

How a Project Moves — and Where You Jump In

The lease and consent. The project needs your customary land, leased through the TLTB with consent. *Your opening — the strongest for a resort:* withhold or challenge consent.

The environmental approval. The works need an EIA and approval. *Your opening — the Malolo lever:* a project without approval, or breaching it, is unlawful and prosecutable.

The works and the regulator. *Your opening:* when a developer breaks ground unlawfully, get a **stop notice** from the regulator and a **halt order** from the courts — fast, before destruction.

Enforcement and the courts. *Your opening:* a lawbreaking developer can be convicted and fined, as Freesoul was.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — including any foreign company, whose reputation and lawfulness you can test. **What consents and approvals it needs** — the lease and consent, the environmental approval: whatever's missing or breached is the soft spot. **What law it's breaking** —

because a documented breach is a stop notice, a court halt, and a conviction.

Who's Supposed to Be Watching

Each is an ally or an arena. The **TLTB** administers the lease and consent. The **environmental regulator** grants approval and issues stop notices. The **courts** enforce the law to conviction. And Fiji's **landowning communities and the vanua, environmental organisations, and a free press** are the forces that reach furthest — the combination that stopped Freesoul.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether it's your customary land, whether approvals were skipped or breached, whether the vanua stays united, and how fast you move to prevent destruction.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Withhold / challenge consent (resort)	35–60%	months	low	Lease refused; project blocked
Demand / attack environmental approval	25–50%	months	low	Works barred; approval refused
Stop notice from the regulator	30–55%	days–weeks	low	Unlawful works halted fast
Court halt order	35–60%	weeks–months	mod	Works stopped by the court
Prosecution / conviction	30–55%	1–3 yr	mod	Developer convicted, fined (Malolo)
United vanua + press	30–55%	months	low	Hard-to-bully pressure; attention
Everything together (customary land, breach, united, fast)	45–70%	months–2 yr	mod	Halted, convicted, refused
Everything together (a mine — minerals are State's)	20–45%	months–yr	mod	Surface works and approval contested

The levers that move the needle most are **consent over your customary land** (for a resort), a **stop notice and court halt** when the law is broken, and **prosecution**, backed by a **united vanua and the press**. Malolo shows the ceiling (Fiji's biggest resort stopped, a first criminal conviction, the maximum fine) and the honest floor (the reef and mangroves were destroyed before the win, and for a mine the minerals are the State's). So aim for a project halted, a developer convicted, a lease refused, consent withheld — and move fast to prevent, not just punish.

On cost: withholding consent, demanding approval, and alerting the regulator are cheap; litigation costs more but delivered a criminal conviction at Malolo. The great strength is customary ownership and a united vanua; the great requirements are speed — to stop destruction before it happens — and unity, so the community cannot be bullied or split.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this missing consent, this skipped approval, this unlawful dredging — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, any foreign parent, and its reputation and lawfulness.

2. Whose land and sea is it on, and what does it touch? Establish that it's your iTaukei customary land (and your customary sea rights), and map it over your reef, mangroves, and waters. **Consent over your customary land is your sharpest lever for a resort** — but note if it's a mine, where the minerals are the State's.

3. What consents and approvals does it need — and lack? The **lease and consent** (TLTB), the **environmental approval** (EIA). Whatever's missing or breached is the soft spot — Freesoul lacked foreshore approval.

4. What stage is it at, and is it breaking the law now? Is a lease or approval pending? Are unlawful works underway (the moment for a stop notice, fast)? Speed prevents destruction.

5. Is the vanua united, and who else is affected? The landowning clan, neighbouring landowners, the village, environmental groups, the press. Malolo's landowners and neighbours acted together.

What this looks like in real life. A foreign-linked developer begins resort works on or beside your customary land and sea — dredging the reef, clearing mangroves — without the required approval. The five questions yield: a foreign company; your customary land and sea (your lever); the approval it lacks; unlawful works underway (stop it now); and a united vanua. That's the Malolo pattern — withhold consent, demand approval, get a stop notice and court halt fast, and prosecute.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and at Malolo, proof of unlawful destruction won a conviction. Build it in three layers, fast.

Layer one: consent and approval. Document your **customary ownership** (the iTaukei land, the vanua) and record clearly whether **consent** was given, and get the **environmental approval** status — whether it exists, and what it requires. A project without consent or approval is already vulnerable.

Layer two: the unlawful harm. The Malolo lever: document, with dated and located photographs and video, any **unlawful works and destruction** — the dredged reef, the cleared mangroves, the dumped coral, the sewage — as it happens, because that evidence is a stop notice, a court halt, and a conviction. Speed is everything: capture it before more is lost.

Layer three: the map of land, sea, and harm. Lay the project over your customary land and sea, your reef and mangroves, so the harm and the breach are undeniable. Walking into the TLTB, the regulator, the courts, or the press with your ownership, the missing consent or approval, and the documented unlawful harm is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **Proof of customary ownership** — the iTaukei land, the vanua, your land and sea rights.

- **The consent and lease status (TLTB) and the environmental approval status** — from the TLTB and the regulator.
- **The unlawful harm** — dated, located photographs and video of the dredging, clearing, dumping, sewage.
- **The map of land, sea, and harm** — your reef and mangroves, laid over the project.
- **Named testimony** — of the landowners, neighbours, and village, gathered fast.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a united vanua gives you power — the Malolo model. Build in four moves, fast.

Unite the vanua. Malolo's strength was the landowning clan and neighbouring landowners acting together, the vanua — land and people as one. Hold that unity, so the community cannot be bullied, bought, or split.

Bring in the regulator and lawyers early. The environmental regulator can issue a **stop notice**; the courts can order a **halt** and convict. Bring them in fast, before more is destroyed, as Malolo did.

Bring in the press. Malolo's story reached the world through journalists, drawing attention that made bullying costly. A free press is a real Fijian lever.

Move fast, and build to last. The reef and mangroves were destroyed before the win, so speed to prevent destruction matters most. Build clear roles, a secure archive, a united way to decide, and the endurance for a fight that ran to a 2022 sentencing — but always prioritise stopping the harm before it happens.

STEP 4: CONSENT, THE ENVIRONMENTAL LAW & THE COURTS

Fiji's sharpest levers are consent over customary land, the environmental-approval law, and the courts.

Consent Over Your Customary Land — the Strongest Lever (for a Resort)

The distinctive Fijian lever: **iTaukei customary land cannot be leased without consent**, through the **TLTB**. For a resort or most developments, **withholding or challenging consent** can block the project outright. Hold the vanua united so consent cannot be manufactured, bought, or split. (For a mine, remember the gap — the minerals are the State's — and lean on the other levers.)

The Environmental Approval and the Regulator

A major project needs **environmental approval (an EIA)** for its works, especially foreshore and marine works. Demand it, attack a defective one, and — when a developer works without it or breaches it, as Freesoul did — get a **stop notice** from the regulator, fast. Skipping approval is exactly what made Malolo's conduct criminal.

The Courts — to Halt and to Convict

The **courts** can order the works **halted** and can **convict** a lawbreaking developer — Fiji's first environmental criminal conviction, and the maximum fine, came from Malolo. Move fast for the halt (to prevent destruction), and pursue prosecution to punish and deter.

The Honest Limits

Straight talk: consent, the environmental law, and the courts are powerful, but destruction can happen before the win (as it did at Malolo), and for a mine the minerals belong to the State, so customary ownership is not the veto it is for a resort. So use the strong tools — consent, the approval law, the regulator, and the courts — move fast to prevent harm, hold the vanua united, and count a project halted, a developer convicted, a lease refused, and consent withheld as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Consent becomes a block. Not "we don't want the resort" but *"this is our iTaukei land, and it cannot be leased without our consent — which we withhold."*

Skipped approval becomes a crime. *"They dredged the reef and cleared the mangroves without the environmental approval the law requires — that is unlawful, and prosecutable,"* as at Malolo.

Destruction becomes a stop notice, now. *"Unlawful works are destroying our reef — the regulator must issue a stop notice and the court a halt, today."*

A foreign developer becomes accountable. *"A company that bullied past our law and our courts — and was convicted and fined for it."*

Match it to the venue: the consent to the TLTB; the missing approval and the unlawful harm to the regulator and the courts; the story to the press. And for anything urgent, aim for the stop notice and halt first.

STEP 5: MEDIA STRATEGY

In Fiji, national and international attention is a real lever — Malolo's story reached the world and made a bully's conduct costly — and it pressures a foreign developer's reputation. A free press makes the media front central.

Lead with the land, the reef, and the lawbreaking, not procedure. Not "the approval was deficient" but "a foreign developer dredged our reef and cleared our mangroves without permission, on land that is ours by custom." Use your strongest material: the dated photographs and video of the harm, proof of ownership, and any stop notice or court order banked.

Work several audiences at once. Fijian press builds domestic pressure and the vanua's strength; international media reaches the foreign developer's reputation, where it's most exposed. Make it easy: captioned photos and video, accurate summaries, a map, strong testimony.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect the vanua's unity — let the whole community and the landowners lead the story, so it cannot be split.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything; and move fast on anything urgent.

8A — Withholding / questioning consent (to the TLTB).

Subject: Consent for [project] on our iTaukei land — [location].

"We, the landowning members of [mataqali/clan] at [location], record that we [withhold / have not given] our consent to the lease for [project] on our iTaukei land. [Contact.]"

8B — Demanding the environmental approval (to the regulator).

Subject: Environmental approval for [project] — [location].

"We, residents/landowners of [place], ask the regulator to confirm the environmental approval status of [project]'s works at [location], and to refuse or condition it on the harm to our reef and mangroves. [Attach evidence.]"

8C — Stop notice (urgent, to the regulator).

Subject: URGENT — unlawful works at [location], [project].

"[Project] is carrying out foreshore/marine works at [location] without the required approval, destroying our reef and mangroves. We ask for an immediate stop notice. [Attach dated photographs.]"

8D — Court halt (to a lawyer).

Subject: Urgent halt and possible prosecution — [project].

"Our community faces unlawful works by [project] destroying our reef and mangroves without approval. We've gathered [ownership, the missing approval, dated evidence of harm]. We ask you to seek an urgent halt and advise on prosecution, as at Malolo. [Contact and evidence summary.]"

8E — To an environmental organisation.

Subject: Unlawful resort works destroying our reef — [project].

"Our vanua faces [project] dredging our reef and clearing our mangroves without approval. We've documented the harm. We ask for your help with the regulator, the courts, and the press. [Contact and evidence summary.]"

8F — To the company / its home country.

Subject: Unlawful works, legal and reputational risk — [project].

"We are the community affected by [project] at [location], on our customary land and sea. Your works proceed without the required approval and are destroying our reef and mangroves. As at Malolo, this carries real legal and reputational risk, including criminal liability. [Contact and evidence summary.]"

8G — Letter to the (international) press.

Subject: [Community] confronts a developer destroying its reef and mangroves.

"On our customary land and sea at [location], [project] is dredging our reef and clearing our mangroves without approval. We can provide dated photographs and video, proof of ownership, and interviews. [Contact.]"

8H — Uniting the vanua.

Subject: Our land, our reef — let's stand as one.

"[Project] threatens our reef and mangroves, on land that is ours by custom. At Malolo, a united vanua used its consent, the law, and the courts to stop Fiji's biggest resort and see the company convicted. Let's stand together and do the same. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean — and speed prevents destruction — do these six things, in order:

1. **Unite the vanua, and record that consent is withheld (8A/8H).** Consent is your strongest lever.
2. **If unlawful works are underway, demand a stop notice from the regulator NOW (8C).**
3. **Document the unlawful harm — dated photographs and video — as it happens.**
4. **Get a lawyer to seek an urgent court halt and advise on prosecution (8D).**
5. **Check and attack the environmental approval (8B).**
6. **Bring in an organisation and the press (8E/8G).**

Even lean, those six use consent, the regulator, and the courts fast — the Malolo template — to stop destruction before it's done.

WHEN THE SYSTEM IS TILTED

Fiji's tools are strong, but no fight is frictionless, and you must plan for it.

When the developer tries to bully or split the vanua. This is the central danger. Hold unity, record refusals of consent collectively, and don't let the clan be picked apart — a united vanua cannot be bullied, as Malolo showed.

When destruction races ahead of the law. Move fast: a stop notice and a court halt, before more reef and mangrove are lost, matter more than a later conviction. Prevent, don't just punish.

When it's a mine. The minerals are the State's, so customary ownership is not the veto it is for a resort. Lean on the environmental approval, consent to surface works and access, and the courts.

When a foreign developer ignores the rules. Document the lawbreaking, get the regulator and courts involved, and expose it internationally — Freesoul was convicted and fined for exactly this.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Fiji has real concerns about the closeness of developers to power and the handling of leases and approvals, so this matters.

How to spot it. Consent manufactured or bypassed; approvals granted against the evidence, or works allowed without them; benefits to the connected while communities lose their reef and land.

Who's supposed to guard against it. Fiji's audit and anti-corruption bodies examine public money and conduct. The **courts** can halt and convict — as they did at Malolo. And Fiji's **landowning communities, environmental organisations, and free press** have exposed captured deals.

How to fight it safely. Document precisely and factually — how consent was bypassed or an approval skipped, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the audit and anti-corruption bodies, the courts, and trusted journalists rather than making accusations you can't back. Pair the exposure with the consent and legal challenge.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, and fast. Your customary ownership and the missing consent or approval build your case; the documented unlawful harm aims it; a united vanua is the muscle; the regulator, the courts, and the press press it at once; speed prevents destruction. Together they multiply. One at a time, or slowly, the reef is lost before the win.

At once (days–weeks): unite the vanua and record withheld consent; if unlawful works are underway, demand a stop notice; document the harm as it happens; get a lawyer for an urgent halt.

In the thick of it (weeks–months): attack or demand the environmental approval; pursue prosecution; bring in an organisation and the press.

The long haul (months–2 yr): carry the prosecution to conviction and penalty; keep the vanua united; hold the line for a project halted, a developer convicted, a lease refused, and consent withheld — having moved fast to prevent the worst.

FINAL ASSESSMENT

Stopping a destructive project in Fiji can be done — a small island's people used their law and their courts to halt the country's biggest planned resort and win its first-ever criminal conviction for environmental harm. Hold both truths. Fiji's distinctive power is real: around nine in ten of the land is iTaukei customary land, owned communally and only leased with consent, and with a real environmental-approval law, working courts, and a free press, a united vanua can stop a project and punish a lawbreaker. And the constraints are real: destruction can outrun the law, as the reef and mangroves lost at Malolo before the conviction show, and for a mine the minerals belong to the State, so customary ownership is not the veto it is for a resort.

Here's the discipline that wins. Unite the vanua, and use your consent over your customary land — for a resort, the strongest lever there is, so hold together and let no one manufacture or split it. Demand the environmental approval, and when a developer works without it or breaches it, move fast: a stop notice from the regulator and a halt from the courts, before your reef and mangroves are destroyed — because prevention beats a later conviction. Document the unlawful harm as it happens, prosecute the lawbreaker as Malolo did, and bring in the press to make bullying costly. For a mine, know the gap and lean on the environmental law, surface consent, and the courts. Count a project halted, a developer convicted, a lease refused, and consent withheld as wins — and move fast, always, to prevent the harm before it's done. That's what Malolo did — a united vanua, its consent, its law, and its courts together. So can you.